

		This has long been the law, there is nothing “bizarre” about it, and defendant has failed to meet this burden. While defendant is, to an extent, entitled to records concerning the body parts at issue in this action (see <i>Vinson, supra</i>, 43 Cal.3d at p. 842), this is not what the subpoena requests. The subpoena requests every single document concerning plaintiff regardless of body part or medical condition from a period of over 10 years. To the Court, this is patently overbroad. (See, e.g., <i>Hallendorf v. Superior Court</i> (1978) 85 Cal.App.3d 553, 557.) Defendant fails to show how all of these records are directly relevant to this case. Defendant is not entitled to review plaintiff’s entire medical history in the hope that it may disclose some condition bearing on his present claims. (<i>Davis, supra</i>, 7 Cal.App.4th at p. 1017.) Defendant must show through evidence how the particular records sought are directly relevant and necessary; speculating that the records may reveal a contributing preexisting condition does not suffice. (<i>Ibid.</i>) Sanctions are GRANTED in the amount of \$1,650 in favor of plaintiff, and jointly and severally against defendant District and its counsel of record, Dominic A. Quiller, Esq. of McCune & Harber, LLP, payable within 30 days of notice. (See Code Civ. Proc., § 1987.2, subd. (a).) Defendant has opposed this motion without substantial justification, and the subpoena was oppressive as issued. (See <i>Obregon v. Superior Court</i> (1998) 67 Cal.App.4th 424, 431 [when discovery requests are grossly overbroad on their face, and hence do not appear reasonably related to a legitimate discovery need, a reasonable inference can be drawn of an intent to harass and improperly burden].) Plaintiff shall give notice.
6.	Doe vs. Country Village Preschool and Kindergarten 25-01497141	Motion to Quash Discovery Subpoena Plaintiff JK Doe’s (a minor by and through her guardian ad litem, Christina Kayanan) motion to quash subpoenas is GRANTED IN PART and DENIED IN PART, as follows. (See Code Civ. Proc., § 1987.1.) This motion concerns seven subpoenas issued by defendant Country Village Preschool and Kindergarten to the following nonparty deponents on 4/29/26: (1) Children’s Hospital of Orange County (CHOC) – medical records; (2) CHOC – billing records; (3) CHOC – radiology records; (4) Anthem Blue Cross Life and Health Insurance Company (Anthem); (5) Saddleback Valley Unified School District (Saddleback); (6) California Department of Social Services (CDSS),

Community Care Licensing Division, Orange County Child Care Regional Office; and (7) Orange County Social Services Agency, Children and Family Services.

The motion is GRANTED with respect to the subpoenas issued to CHOC, Anthem, and Saddleback, and these subpoenas are hereby quashed in their entirety.

The motion is GRANTED IN PART with respect to the subpoena issued to the CDSS, and this subpoena is hereby quashed to the extent it seeks or encompasses any records of a minor. The subpoena issued to the CDSS shall remain in force to the extent it seeks any records that **do not** involve a minor.

The motion is DENIED AS MOOT with respect to the subpoena issued to the Orange County Social Services Agency, as defendant has now withdrawn this subpoena as of 6/29/26. (See Caloca Decl. ¶ 8, Ex. B.)

CHOC, Anthem, Saddleback subpoenas. Plaintiff has a right to privacy in her medical, financial, insurance, and education records. (See *Vinson v. Superior Court* (1987) 43 Cal.3d 833, 841 (*Vinson*) [medical records]; *Davis v. Superior Court* (1992) 7 Cal.App.4th 1008, 1014 (*Davis*) [medical records]; *Cobb v. Superior Court* (1979) 99 Cal.App.3d 543, 550 [financial information]; Ins. Code, § 791.01 et seq. [insurance company files regarding an insured or claimant protected by statute]; Educ. Code, § 49076 [education records]; 20 U.S.C. § 1232g [education records]; *Rim of the World Unified School Dist. v. Superior Court* (2002) 104 Cal.App.4th 1393, 1396, 1397-1398 [same].)

Disclosure may be ordered when the information is directly relevant and essential to the fair resolution of the lawsuit, and where the need for disclosure outweighs privacy concerns. “The scope of any disclosure must be narrowly circumscribed, drawn with narrow specificity, and must proceed by the least intrusive manner. [Citation.]” (*Davis, supra*, 7 Cal.App.4th at p. 1014; see *Williams v. Superior Court* (2017) 3 Cal.5th 531, 552 [framework for determination of privacy objection]; *Hill v. National Collegiate Athletic Assn.* (1994) 7 Cal.4th 1, 35 (*Hill*) [same]; see also *Puerto v. Superior Court* (2008) 158 Cal.App.4th 1242, 1251 [harmonizing privacy analysis in pre and post-*Hill* decisions].)

The party seeking disclosure of the constitutionally protected information bears the burden of establishing direct relevance. (*Davis, supra*, 7 Cal.App.4th at p. 1017.)

While defendant is, to an extent, entitled to records concerning the body parts and conditions at issue in this action (see *Vinson, supra*, 43 Cal.3d at p. 842; see also Ferrera Decl. at Ex. 1; Caloca Decl. at Ex. A), this is not what these subpoenas request. The CHOC and Anthem subpoenas seek any and all documents concerning plaintiff regardless of body part or condition, and without any limitation whatsoever. The Saddleback subpoena also seeks any and all records pertaining to or identifying plaintiff, even though plaintiff has not alleged any conditions, injuries, or damages related to her academic performance, attendance history, or educational evaluations. This is patently overbroad. Defendant has failed to demonstrate how all of these records are directly relevant and essential to the fair resolution of this case, and defendant is not entitled to peruse through plaintiff's entire medical and educational history on the speculation that it may reveal a preexisting condition/alternate cause or other potentially relevant information. (See *Davis, supra*, 7 Cal.App.4th at p. 1017.)

CDSS subpoena. The subpoena issued to the CDSS requests 7 categories of documents. The first request for production seeks records concerning plaintiff, a minor (DOB 1/30/20); the second request seeks records concerning the alleged assailant, also a minor (DOB 5/24/19); and the third request seeks records regarding the subject incident involving these minors. (Ferrera Decl. at Ex. 2.) Requests for production Nos. 4-7 then seek all "notes, interviews, reports or correspondence relating to" certain employees of defendant from 1/1/22 to the present, without any limitation as to subject matter. (*Ibid.*)

The CDSS subpoena is procedurally improper and quashed to the extent it seeks or encompasses any records of a minor. Juvenile records (records of a minor) of the CDSS or a county child welfare agency cannot be subpoenaed through an ordinary civil subpoena; they can only be obtained through a juvenile court order pursuant to Welfare and Institutions Code section 827. (See *Lorenza P. v. Superior Court* (1988) 197 Cal.App.3d 607, 610-611; Cal. Rules of Court, rule 5.552.) The Juvenile Court has exclusive jurisdiction over the matter. (*Wescott v. County of Yuba* (1980) 104 Cal.App.3d 103, 110.)

The rest of the subpoena, however, is acceptable. Defendant may subpoena the CDSS for records relating to its employees to the extent those records do not involve any minors. Any such records would not implicate plaintiff (a minor) or her right to privacy.

		<u>Sanctions.</u> Sanctions are GRANTED in the amount of \$1,850 in favor of plaintiff and against defendant, payable within 30 days of notice. (See Code Civ. Proc., § 1987.2, subd. (a).) Most of the subpoenas were egregiously overbroad on their face and oppressive as issued, and defendant has largely opposed this motion without substantial justification. (See <i>Obregon v. Superior Court</i> (1998) 67 Cal.App.4th 424, 431.) Plaintiff shall give notice.
7.	Boehner vs. Mercy House Living Centers 26-01543108	Motion - Other (Order to allow substituted service of summons and complaint) MOOT based on order granting substituted service March 26, 2026, ROA 65. In addition, Plaintiff filed a FAC on July 13, 2026, ROA 148.
8.	Smits vs. Mother Nature Trust 25-01482681	1. Motion for Leave to Amend 2. Case Management Conference Plaintiff Andrew Smits' Motion for Leave to File a Second Amended Complaint is GRANTED. (Code Civ. Proc. §473, subd. (a)(1); <i>Atkinson v. Elk Corp</i> (2003) 109 Cal.App.4th 739, 761 [policy of great liberality in permitting amendments]; <i>Howard v. County of San Diego</i> (2010) 184 Cal.App.4th 1422, 1428 [policy favoring amendment so strong it is rare case in which denial of leave to amend can be justified].) Leave to amend is warranted as the proposed amended pleading states an alternative theory of liability. (See <i>Morgan v. Super. Ct.</i> (1959) 172 Cal.App.2d 527, 530 ["If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend; and, where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion"]; <i>Kittredge Sports Co. v. Super. Ct.</i> (1989) 213 Cal.App.3d 1045, 1047 ["judicial policy favors resolution of all disputed matters in the same lawsuit"].) In opposition, Defendants challenges the legal sufficiency of the proposed amended complaint, arguing that Plaintiff's claims are barred by res judicata and the statute of limitations. The court is not going to entertain assertions regarding the legal sufficiency of Plaintiff's allegations in assessing a motion for leave to amend. Defendant can raise its challenges to the sufficiency of Plaintiff's claims in an appropriate proceeding. (See <i>Atkinson v. Elk Corp.</i> (2003)